

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3015

By: Kerbs

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9 COMMITTEE SUBSTITUTE

10 An Act relating to Service Oklahoma; defining terms;
11 authorizing Service Oklahoma to issue electronic
12 credentials to certain individuals; requiring certain
13 data match; authorizing certain contracts; requiring
14 validity period be set by Service Oklahoma; requiring
15 the promulgation of certain rules; detailing the
16 building of the electronic credentialing system;
17 limiting request to certain electronic credential
18 data elements; stating certain applicability;
19 providing that relying parties do not need to make
20 certain authentication; limiting the retention of
21 certain data; requiring certain information be
22 provided; stating electronic credentials shall be
23 accepted as a valid form of identification; amending
24 47 O.S. 2021, Section 1-114, as amended by Section
25 24, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2025,
26 Section 1-114), which relates to driver and driver
27 license; modifying definition; amending 47 O.S. 2021,
28 Section 1-155, as amended by Section 26, Chapter 282,
29 O.S.L. 2022 (47 O.S. Supp. 2025, Section 1-155),
30 which relates to revocation of driving privilege;
31 requiring the surrender of physical driver license
32 and invalidation of electronic driver license;
33 stating termination shall not depend on certain
34 physical possession of a credential; amending 47 O.S.
35 2021, Section 6-209, as amended by Section 12,
36 Chapter 11, O.S.L. 2024 (47 O.S. Supp. 2025, Section
37 6-209), which relates to surrender and return of
38 license; requiring the surrender of physical driver

1 license and invalidation of electronic driver
2 license; modifying means of verifying identification;
3 providing for codification; and providing an
4 effective date.
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7 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

8 SECTION 1. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 110A of Title 47, unless there
10 is created a duplication in numbering, reads as follows:

11 "Credential" shall mean a driver license, permit, or
12 identification card issued by Service Oklahoma.

13 SECTION 2. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 110B of Title 47, unless there
15 is created a duplication in numbering, reads as follows:

16 "Credential holder" shall mean an individual that has been
17 issued a physical or electronic credential.

18 SECTION 3. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 114.1 of Title 47, unless there
20 is created a duplication in numbering, reads as follows:

21 "Electronic credential" shall mean an electronic extension of
22 the physical credential issued by Service Oklahoma that conveys
23 identity and driving privilege information.
24

1 SECTION 4. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 114.2 of Title 47, unless there
3 is created a duplication in numbering, reads as follows:

4 "Electronic credential system" means a digital process that
5 includes a method for provisioning electronic credentials,
6 requesting and transmitting electronic credential data elements, and
7 performing tasks to maintain the system.

8 SECTION 5. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 1-144A of Title 47, unless there
10 is created a duplication in numbering, reads as follows:

11 "Physical credential" shall mean a document issued by Service
12 Oklahoma that conveys identity and driving privilege information.

13 SECTION 6. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 153A of Title 47, unless there
15 is created a duplication in numbering, reads as follows:

16 "Relying party" means the entity to which the credential holder
17 is presenting the electronic credential.

18 SECTION 7. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1-187 of Title 47, unless there
20 is created a duplication in numbering, reads as follows:

21 "Verification process" means a method of authenticating the
22 electronic credential through the use of secure encrypted
23 communication.

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1 SECTION 8. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 6-131 of Title 47, unless there
3 is created a duplication in numbering, reads as follows:

4 A. Service Oklahoma may issue an electronic credential only to
5 individuals who are otherwise eligible to hold a physical
6 credential. The data used to build an electronic credential shall
7 match the current relevant Service Oklahoma records. Service
8 Oklahoma:

9 1. May contract with one or more entities to develop an
10 electronic credential system;

11 2. Shall set the validity period of electronic credentials; and

12 3. Shall promulgate rules to implement the provisions of this
13 section.

14 B. Service Oklahoma shall build the electronic credentialing
15 system following industry best practices to protect the privacy of
16 the credential holder and prevent tracking.

17 C. Relying parties shall only request electronic credential
18 data elements that are necessary to complete the transaction for
19 what data is being requested. Electronic credential data is subject
20 to all applicable Oklahoma and federal data security and privacy
21 protection laws and regulations.

22 D. Electronic credentials shall not require communication with
23 Service Oklahoma for relying parties to authenticate an electronic
24 credential.

1 E. Relying parties shall only retain electronic credential data
2 elements for which the relying party explicitly obtained consent
3 from the electronic credential holder. Relying parties shall inform
4 the electronic credential holder of the use and retention period of
5 the electronic data elements.

6 F. Electronic credentials shall be a valid form of
7 identification in all places that a physical driver license is
8 accepted for identification.

9 SECTION 9. AMENDATORY 47 O.S. 2021, Section 1-114, as
10 amended by Section 24, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2025,
11 Section 1-114), is amended to read as follows:

12 Section 1-114. Driver and driver license.

13 A. "Driver" means any person who drives, operates or is in
14 actual physical control of a vehicle.

15 B. "Driver license" means a document issued by Service Oklahoma
16 or the driver licensing agency of another state or country which
17 grants to the person named thereon the privilege to drive, operate
18 or be in actual physical control of a motor vehicle. The term shall
19 include an intermediate Class D driver license, a learner permit and
20 commercial learner permit. The term shall also include both the
21 physical document or the digital version of the document approved by
22 Service Oklahoma.

1 SECTION 10. AMENDATORY 47 O.S. 2021, Section 1-155, as
2 amended by Section 26, Chapter 282, O.S.L. 2022 (47 O.S. Supp. 2025,
3 Section 1-155), is amended to read as follows:

4 Section 1-155. Revocation of driving privilege.

5 The termination by formal action of Service Oklahoma of a
6 person's privilege to operate a motor vehicle on the public
7 highways. Such action shall include the requirement of the
8 surrender to Service Oklahoma of the person's physical driver
9 license and the invalidation or electronic disablement of any
10 electronic driver license issued to the person. The effectiveness
11 of the termination shall not depend on physical possession of a
12 credential.

13 SECTION 11. AMENDATORY 47 O.S. 2021, Section 6-209, as
14 amended by Section 12, Chapter 11, O.S.L. 2024 (47 O.S. Supp. 2025,
15 Section 6-209), is amended to read as follows:

16 Section 6-209. A. Service Oklahoma upon canceling or denying
17 the driver license of a person or upon suspending or revoking the
18 driving privilege of a person shall require that the physical driver
19 license of the person be surrendered to Service Oklahoma and that
20 the electronic driver license issued to the person shall be
21 invalidated or disabled. When the statutory requirements for
22 reinstatement are met in accordance with Oklahoma Statutes, the
23 person shall apply for a new driver license from Service Oklahoma;
24 provided Service Oklahoma has determined that the licensee is a

1 person not prohibited from holding a driver license under Section 6-
2 103 of this title, and has successfully completed the customary
3 written, physical and driving tests, if such tests are required.
4 Identification of the person shall be verified through the ~~driver~~
5 ~~license digital file~~ records of Service Oklahoma.

6 B. Service Oklahoma, upon entering an order canceling or
7 denying a driver license or suspending or revoking the driving
8 privilege of a person, shall forward a copy of the order to the
9 licensee pursuant to the provisions of Section 2-116 of this title
10 and request the immediate return of the driver license to Service
11 Oklahoma. Failure to comply with the order of Service Oklahoma
12 shall constitute a misdemeanor and, upon conviction, the person
13 shall be punished by a fine of not less than Fifty Dollars (\$50.00)
14 nor more than One Hundred Dollars (\$100.00).

15 C. Any peace officer of this state may seize the license of any
16 person who, according to Service Oklahoma records, is under
17 suspension, cancellation, revocation or denial under the provisions
18 of this title. The officer shall immediately forward the license to
19 Service Oklahoma.

20 D. No person shall have a property interest in the physical
21 driver license issued pursuant to the laws of this state. It shall
22 be the duty of every person whose driving privilege has been
23 suspended, canceled or revoked to immediately surrender his or her
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1 driver license upon the request of any peace officer or
2 representative of Service Oklahoma.

3 SECTION 12. This act shall become effective November 1, 2026.

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5 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/04/2026 - DO PASS,
6 As Amended.

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